

third parties, like names, addresses, dates of birth, etc. Since the assault took place when Plaintiff was a minor, it is important the records produced do not violate the privacy rights of any third-party minors.

Finding and Order:

Grant the motions to compel but the documents produced in response to the subpoenas must be limited to: (1) not include information about Plaintiff's sexual conduct other than with the alleged perpetrator and assault; and (2) not include identifying information of non-party third parties, including names, addresses, dates of birth, or other identifying information. Given the parties' history with the prior First Look protocol, the court instructs the parties to meet and confer about who should redact the records – either a party, a discovery referee, the entities themselves, etc.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404780	WEST VS DURAN	MOTION TO SET ASIDE ON COMPLAINT

Tentative Ruling:

This motion is unopposed. Motion to set aside the default judgment against Rocket Auto Recycling is granted. The Court has signed the submitted proposed order.

The matter is set for a **Case Management Conference on 8/6/2026** at 8:30 a.m. in Dept. 6. Plaintiff to give all parties notice of the CMC.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406368	DURO VS HYUNDAI MOTOR AMERICA, A CALIFORNIA CORPORATION	MOTION TO COMPEL THE DEPOSITION AND ACCOMPANYING DOCUMENT PRODUCTION OF PLAINTIFF LORINA MARGARET DURO

Tentative Ruling:

Moving Party: Defendant Hyundai Motor America
Responding Party: Plaintiff Lorina Margaret Duro

This is a lemon law case relating to a 2022 Hyundai Palisade. Plaintiff Lorina Margaret Duro ("Plaintiff") alleges the vehicle was delivered with serious defects and nonconformities to warranty that impaired the value, use and/or safety of the vehicle. Plaintiff filed the instant action against Defendant Hyundai Motor America ("Defendant"). On November 12, 2024, alleging three causes of action under the Song-Beverly Warranty Act.

Now, Defendant moves for an order compelling the deposition of Plaintiff. Defendant states it sent three deposition notices to which Plaintiff objected to the date and time. Defendant states Plaintiff failed to provide alternative dates after repeated attempts by Defendant to meet and confer.

In opposition, Plaintiff states the motion is moot because she provided 7/9/2026 and 7/14/2026 as dates for her deposition.

In reply, Defendant states while the deposition is currently noticed for 7/14/2026, the motion is not moot because that deposition has not occurred and Plaintiff could fail to appear.

ANALYSIS

A. Meet and Confer

Prior to filing a motion to compel a deposition, the parties are required to meet and confer, or in the case of a failure to appear, the moving party should inquire about the non-appearance. (CCP § 2025.450(b)(2).) A meet and confer declaration under section 2016.040 must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (CCP § 2025.420.)

Here, Defendant satisfied the meet and confer requirement. Defendant served the first deposition notice on 6/5/2025. (Declaration of Sarah Suard, ¶ 5, Exhibit A.) Since then, Defendant reached out many times in an attempt to find a mutually agreeable date, including a prior agreement to a date of 3/11/2026 which Plaintiff later objected to. (*Id.* at ¶¶ 6-14.) At the time of filing the motion, Plaintiff had not provided any alternative dates for her deposition. (*Id.* at ¶ 16.)

B. Motion to Compel Deposition – Merits

Service of a proper deposition notice requires any deponent who is a party, including its officer, director, managing agent, or employee to attend and to testify as well as to produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280.) Section 2025.450(a) states: “If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a **valid objection under Section 2025.410**, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (CCP § 2025.450(a), emphasis added.)

An objection is based on any error or irregularity in a deposition notice that does not comply with CCP section 2025.210 et seq. unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served. (CCP § 2025.410(a).) Valid objections include service, location of the deposition, time limits, etc. (CCP § 2025.220 et seq.) Any other challenge such as privilege, relevance, undue burden and expense, oppression, etc. may be challenged via protective order, which can be sought before, during, or after a deposition. (CCP § 2025.420.) Serving an objection is not a substitute for a motion for protective order. (See *Snyder v. Superior Court* (1970) 9 Cal.App.3d 579, 586 (applying former CCP § 2021).)

Here, as to each prior deposition notice, Plaintiff failed to properly object as the only issue is the date of the deposition. (See Declaration of Sarah Suard, Exhibits B, D, and G.) These are not a valid objection under section 2025.410. Accordingly, absent a protective order, Plaintiff is required to attend a noticed deposition. In the opposition, Plaintiff indicates she offered 7/9/2026 and 7/14/2026 for her deposition. The reply indicates Defendant noticed the deposition for 7/14/2026.

The court GRANTS Defendant's motion and orders the deposition go forward as currently noticed on 7/14/2026.

C. Sanctions

CCP section 2025.450(g)(2) provides that the court shall impose a monetary sanction unless it finds the party who unsuccessfully makes or opposes the motion to compel acted with substantial justification or other circumstances make the imposition of the sanction unjust.

Plaintiff argues the motion is moot because she offered alternative dates. But it was not until Defendant filed the motion that the parties finally agreed to a date. Sanctions are warranted. The amount requested of \$1,600 is reasonable. **Sanctions are payable within 30 days of this order.**

Summary

The court GRANTS Defendant's motion and orders the deposition go forward as currently noticed on 7/14/2026. Award sanctions to Defendant as requested in the amount of \$1,600 for Plaintiff's failure to properly object to any of the prior deposition notices and for waiting until Defendant filed the instant motion to provide dates.